

24NNCV05142 24NNCV05142

County: los-angeles
Division: Civil Law and Motion
Department: 3
Hearing date: 2026-06-25
Motion: DEFENDANT CITY OF PASADENA'S MOTION FOR PROTECTIVE ORDER RE: SCOPE OF DISCOVERY
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C06%2F25%2F2026
Source SHA-256: 1fe2824b2ae5e3c410942238179fbaa152c9d5dbfb0b7d5bc9a89fe96031bb50

Case Number: 24NNCV05142 Hearing Date: June 25, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

HOWARD
JARVIS TAXPAYERS ASSOCIATION, et al.,

Plaintiff(s),

vs.

CITY OF
PASADENA, et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24NNCV05142

[TENTATIVE]

ORDER RE: DEFENDANT CITY OF PASADENA'S MOTION FOR PROTECTIVE ORDER RE:
SCOPE OF DISCOVERY

Dept.

3

8:30

a.m.

June 25,
2026

)

I.

INTRODUCTION

In this reverse validation proceeding and action for declaratory relief challenging water rates, Defendant City of Pasadena ("Defendant") seeks a protective order prohibiting plaintiffs Howard Jarvis Taxpayers Association and John Gregory Haines (collectively, "HJTA") from obtaining responses to HJTA's First Set of Special Interrogatories (Nos. 1-2), First Set of Requests for Production of Documents (Nos. 1-5), and First Set of Requests for Admission (Nos. 1-2), served on April 15, 2026. Defendant

also requests the Court order that discovery is limited to the administrative record before the Pasadena City Council at the time

II.

DISCUSSION

A reverse validation action is a challenge to an agency's "legislative type activity." (Morgan v. Community Redevelopment Agency (1991) 231 Cal.App.3d 243, 258.) Defendant argues that conventional civil discovery is inapplicable in this case because judicial review of legislative acts is limited to the administrative record, with narrow exceptions set forth in Government Code section 53759.2 (b)(2).) Government Code section 53759 governs Proposition 218 challenges and section 53759.2 sets forth the evidence that can be considered by the Court. The Court's review is limited to "the record of proceedings before the local agency" and evidence outside the record may be admitted only if the evidence is relevant to: (1) issues other than the validity of the fee or assessment, such as standing or capacity, (2) affirmative defenses, such as laches, estoppel, and res judicata, (3) the accuracy and completeness of the administrative record, and (4) the local agency's compliance with the procedures set forth in Government Code section 53759.1. (Gov. Code, §§ 53759.2, subd. (b)(2)(A)-(D).) Extrinsic evidence may also be admissible where it is necessary to explain information in the administrative record. (Gov. Code, § 53759.2, subd. (b)(2)(E).)

Given the limited amount of evidence that is admissible at trial, the scope of discovery set forth in Code of Civil Procedure section 2017.010 is necessarily narrowed and does not encompass HJTA's pending discovery. First, an interrogatory answer is a sworn statement created for litigation that did not exist when the City Council acted — it develops new facts, not expert interpretation of existing ones. Second, a request for admission does not seek to understand the record; it seeks a binding pretrial concession that would conclusively establish a factual predicate regardless of what the administrative record shows, effectively overriding it. Third, a document request under HJTA's sweeping definitions — encompassing emails, schematics, and electronically stored information in the possession of City employees, contractors, and consultants — seeks evidence entirely outside the record regarding wells, water towers, reservoirs, pumping stations, and water sources. As Defendant asserts, "[n]one of these vehicles aids the parties or the court in analysis of the record. All three seek to develop and introduce substantive facts that were never before the City Council."

(Reply, p. 10.)

The Court has considered HJTA's other arguments expressed in its opposition brief and finds them unpersuasive in light of Defendant's reply brief. Defendant distinguishes the cases cited by HJTA and points out that HJTA does not address the statutory framework for reverse validation proceedings in the Government Code or show how the requested discovery is reasonably calculated to lead to any of the evidence made admissible by Government Code section 53759.2. HJTA also fails to address section 867 of the Code of Civil Procedure, which mandates expedited resolution of validation actions and is incompatible with HJTA's claim that ordinary civil discovery rules apply.

III.

CONCLUSION

In light of the foregoing, Defendant's motion for a protective order is GRANTED. Defendant need not respond to HJTA's First Set of Special Interrogatories (Nos. 1-2), First Set of Requests for Production of Documents (Nos. 1-5), and First Set of Requests for Admission (Nos. 1-2), served on April 15, 2026. Discovery as to evidence outside the administrative record is limited to matters relevant to or reasonably calculated to lead to the discovery of evidence admissible under Government Code § 53759.2.

Moving party
to give notice.

Dated
this 25th
day of June 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to
submit on this tentative must send an email to the Court at
indicating intention to submit on the tentative as directed by the instructions

provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calen